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Case Number: 25STCV22210 Hearing Date: August 21, 2026 Dept: 224

Wilson v. Randee Paller et al.,

TENTATIVE RULING

The demurrer is OVERRULED as to the First Affirmative Defense and SUSTAINED as to the Second through Fiftieth Affirmative Defenses. Leave to amend is granted as to the Second through Forty-Ninth Affirmative Defenses. Leave to amend is denied as to the Fiftieth Affirmative Defense.

Defendants are to file a First Amended Answer in 20 days.

ANALYSIS

Introduction

On July 28, 2025, Plaintiffs filed a Complaint arising out of Plaintiffs' tenancy at the property located at 9218 Gerald Avenue, Northridge, California 91343, alleging that Defendants failed to remedy mold and other uninhabitable conditions at the property.

On November 21, 2025, Defendants filed their Answer to the Complaint.

On November 26, 2025, Plaintiffs filed the instant Demurrer to Defendants' Answer.

On December 16, 2025, Defendants filed an Opposition.

On August 12, 2026, Plaintiffs filed a Reply.

Meet and Confer

Before filing a demurrer or a motion to strike, the demurring or moving party is required to meet and confer with the party who filed the pleading demurred to or the pleading that is subject to the motion to strike for the purposes of determining whether

an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (CCP §§ 430.41)

The Declaration of William Bloch, executed on November 26, 2025, sets forth the meet and confer efforts of counsel for the Plaintiffs. The Court finds that the declaration does not satisfy the requirement of Code of Civil Procedure section 430.41, that "... the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer." However, given how long the demurrer has been pending, the Court will exercise its discretion to address the merits.

Legal Standard

A party against whom an answer has been filed may object by demurrer. Unlike a demurrer to a complaint or cross-complaint, a demurrer to an answer is limited to three grounds:

- (a) The answer does not state facts sufficient to constitute a defense;
- (b) The answer is uncertain; or
- (c) Where the answer pleads a contract, it cannot be ascertained from the answer whether the contract is written or oral.

(Code Civ. Proc. § 430.20.)

Affirmative defenses are pled based upon facts demonstrating that no cause of action exists, notwithstanding the truth of the complaint's allegations. (Walsh v. W. Valley Mission Cmty. College Dist., 66 Cal. App. 4th 1532, 1542 n. 3 (1998).) "Under general rules of civil procedure, an answer must contain '[t]he general or specific denial of the material allegations of the complaint controverted by the defendant' and '[a] statement of any new matter constituting a defense.'" (Quantification Settlement Agreement Cases, 201 Cal. App. 4th 758, 812 (2011).)

Demurrer Based on Failure to State Facts

Plaintiffs demur to the First through Fiftieth Affirmative Defenses in the Answer on the grounds that they fail to state facts sufficient to constitute a defense to the Complaint. (Code Civ. Proc. § 430.20, subd. (a).)

While it is true that a general denial is effective to controvert all material allegations of an unverified complaint, Defendants' affirmative defenses constitute "new matter" that must be pled based on specific facts. (Code Civ. Proc., § 431.30, subd. (d), Code Civ. Proc., § 431.30, subd. (b).) Defendants' Opposition, which rests on the sufficiency of a general denial to an unverified complaint, does not answer the Demurrer. That Plaintiffs' Complaint is unverified addresses the denials in the Answer, not the affirmative defenses that follow them.

In addition to denials, the Answer should contain any and all affirmative defenses or objections to the complaint that defendant may have, and that would otherwise not be in issue under a simple denial. Such defenses or objections are "new matter." (Code Civ. Proc., § 431.30, subd. (b).) Generally, a defendant bears the burden of proving "new matter" and, as such, must be specifically pleaded in the answer. (California Academy of Sciences v. County of Fresno (1987) 192 Cal.App.3d 1436, 1442.) "The phrase 'new matter' refers to something relied on by a defendant which is not put in issue by the plaintiff." (Walsh v. West Valley Mission Community College District (1998) 66 Cal.App.4th 1532, 1546; see also Cahil Bros., Inc. v. Clementina Co. (1962) 208 Cal.App.2d 367, 385 ["The basic consideration is whether the matters of defense are responsive to the essential allegations of the complaint, i.e., whether they are contradicting elements of plaintiff's cause of action or whether they tender a new issue, in which case the burden of proof is upon the defendant as to the allegation

constituting such new matter."].

As a general rule, the answer must allege facts constituting the affirmative defense in the same manner as a complaint must do for a cause of action. (FPI Development, Inc. v. Nakashima, 231 Cal. App. 3d 367, 384 (1991)). The answer must aver facts as carefully and with as much detail as the facts which constitute the cause of action and which are alleged in the complaint. (FPI Development, Inc. v. Nakashimi (1991) 231 Cal.App.3d 367, 384 [a general denial puts in issue the material allegations of the complaint; court was considering whether general denial put at issue new matter for a motion for summary judgment].) CCP § 431.30(g) provides that the various affirmative defenses must be separately stated and must refer to the causes of action to which they relate "in a manner by which they may be intelligently distinguished."

First Affirmative Defense: Failure to State a Claim

The first affirmative defense alleges that the Complaint fails to state facts sufficient to constitute a cause of action. This is not "new matter" but a negative defense, which may be raised at any time and need not be supported by additional facts.

The demurrer to the first affirmative defense is OVERRULED.

Forty-Ninth Affirmative Defense: Statute of Limitations

The forty-ninth affirmative defense alleges that the Complaint and each cause of action are barred by applicable statutes of limitations, "including, but not limited to," Code of Civil Procedure sections 335, 335.1, 336, 337.2, 338, 339, 340, 343, and 474. Code of Civil Procedure section 458 permits a statute of limitations defense to be pleaded without accompanying facts. However, where no facts are pled, the defendant must plead the specific section and subdivision relied upon. (Martin v. Van Bergen (2012) 209 Cal.App.4th 84, 91.) Here, Defendants recite a string of code sections prefaced by "including, but not limited to," and do not identify the specific subdivision providing the applicable statute of limitations for those sections containing subdivisions.

The demurrer to the forty-ninth affirmative defense is SUSTAINED with leave to amend.

Fiftieth Affirmative Defense: Ongoing Investigation

The fiftieth affirmative defense alleges that Defendants have not completed their investigation and reserve the right to amend the Answer and plead additional defenses. A reservation of the right to assert future defenses does not state a defense. The proper vehicle for asserting additional defenses is a noticed motion for leave to amend.

The demurrer to the fiftieth affirmative defense is SUSTAINED without leave to amend.

Remaining Affirmative Defenses

Plaintiffs argue that the remaining challenged defenses are proffered as terse legal conclusions because there are no facts alleged, or "essential facts" of the affirmative defenses "sufficient to acquaint [plaintiff] with the nature, source and extent" of the defenses. (Ludgate Ins. Co. v. Lockheed Martin Corp. (2000) 82 Cal.App.4th 592, 608.)

As to the remaining affirmative defenses at issue, the Answer states little to no facts in support of the affirmative defenses. Each is stated as a bare legal label or doctrine, without any facts connecting the doctrine to the allegations of this action. Because affirmative defenses are "new matter," Defendants bear the burden of proof, and each must be supported by ultimate facts pleaded with the same detail required of the Complaint. Each affirmative defense stated within is conclusory

and insufficient to meet the minimal standard of setting forth the facts upon which the defenses are based.

Accordingly, the demurrer to the Second through Forty-Eighth Affirmative Defenses set forth in the Answer is SUSTAINED with leave to amend.

Conclusion

The demurrer is OVERRULED as to the First Affirmative Defense and SUSTAINED as to the Second through Fiftieth Affirmative Defenses. Leave to amend is granted as to the Second through Forty-Ninth Affirmative Defenses; leave to amend is denied as to the Fiftieth Affirmative Defense.

Amended Answer due in 20 days.

Moving Party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.